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IT is hereby notified that the Minister of Higher and Tertiary Education, Innovation, Science and Technology Development has, in terms of section 32(1) and (2) of the Manpower Planning and Development Act [*Chapter 28:02*], made the following regulations:—

Title

1. These regulations may be cited as the Manpower Planning and Development (Chemical Industry) Regulations, 2023.

Interpretation

2. In these regulations—

"Authority" means the Ministry Higher and Tertiary Education, Innovation, Science and Technology Development;

"industry" means Chemical industry;

"skilled worker" unless otherwise specified in relation to the designated trade, means a skilled worker class 1;

"fund" means Zimbabwe Manpower Development Fund (ZIMDEF);

"competency test" means a practical trade test;

"indentured" means contract of apprenticeship.

Application

3. These regulations shall apply to the Chemical Industry.

Prescription of occupations and designation of trades

4. The occupations specified in the First Schedule shall be designated trades requiring apprenticeship training for certification as a skilled worker in terms of the Act.

Age and qualifications for commencing apprenticeship

5. (1) The minimum age for commencing apprenticeship shall be sixteen years.

(2) The minimum qualifications for commencing apprenticeship in the designated trade shall be—

(a) five passes at grade "C" or better in English Language, Mathematics; and

(b) a relevant science subject and any other two subjects at "O" level or relevant National Foundation certificates from an approved examination Board;

(c) a relevant technical subject shall be an added advantage.

Period of apprenticeship

6. (1) The period of apprenticeship required before certification as a skilled worker in all the trades shall be four years.

(2) The Authority may, if it is satisfied that an apprentice has received previous apprenticeship training in the industry or in the occupation or trade in which he or she is indentured, reduce the period of his or her apprenticeship by such time, not exceeding the time of the previous apprenticeship training, as it considered equitable in the circumstances.

(3) Notwithstanding the provisions of subsection (1), if an apprentice has, before the commencement of his or her apprenticeship, completed a period of service, employment or training—

(a) in terms of the National Service Act [*Chapter 11*:*08*]; or

(b) in the Defence Forces, in terms of the Defence Act [*Chapter 11*:*02*]; or

(c) in the Regular Force, in terms of the Police Act [*Chapter 11*:*10*]; or

(d) considered by the Authority to be equivalent to service, employment or training in terms of paragraph (a), (b) or (c).

(4) Subject to the approval of the Authority, an apprentice who is considered by his or her employer to be sufficiently advanced in his or her trade may apply for a competency test in the practice of his or her trade devised by the Authority.

(5) On the successful completion of a competency test referred to in subsection (4), an apprentice shall be granted remission of the period of his or her apprenticeship remaining, with effect from the day following the final day of the test.

(6) The Authority may determine, and revise from time to time, charge a fee specified in the Second Schedule to the apprentice to cover the cost of the competency test referred to in subsection (4).

Technical training and examination

7. (1) Subject to provisions of subsection (5), and unless otherwise directed by the Authority, every apprentice shall undergo full-time technical training which shall—

(a) be preceded by an induction period of not more than six months during which the apprentice shall be tested for aptitude and made familiar with the industry; and

(b) include attendance at an approved technical training institution on a course—

(i) approved by the Authority on the advice of the principal of that institution; and

(ii) lasting for two consecutive semesters.

(2) If the Authority considers that an apprentice is unsuitable for entry into the industry, it may cancel his or her contract of apprenticeship during the induction period specified in subsection (1).

(3) Where facilities for full-time class attendance to study for a prescribed occupation or designated trade subject do not exist, the Authority may prescribe other course of study as it deems appropriate in the circumstances.

(4) An apprentice who at the end of second semester fails to pass the final examination, shall undergo a theory statutory test equivalent to a year of training, to enable him or her to continue and complete apprenticeship training.

(5) Subject to the approval of the Authority, acting on the advice of the employer, an apprentice may undergo advanced training at a technical training institution.

Practical training

8. (1) Every employer who employs an apprentice shall give the apprentice such practical training in the appropriate trade as is specified in the Third Schedule.

(2) The practical training referred to in subsection (1) shall be of such a nature and it shall be given to such an extent as will, in the opinion of the Authority, afford the apprentice a thorough grounding in the operations and processes normally carried out by any skilled worker in the trade concerned and afford the apprentice a satisfactory insight into the work of cognate trades.

(3) With the approval of the Authority, an employer may make arrangements for an apprentice to receive such practical training as is indicated in the Third Schedule which cannot be provided in the employer's establishment, or any approved supplementary training, in the establishment of another employer or in some other approved manner or in such other manner as the Authority may approve.

(4) During the course of his or her apprenticeship, an apprentice shall keep in a log book, in the format provided by the Authority, and certified by the apprentice, the employer and duly authorised official appointed by the Authority a correct record of work undertaken, training received and the level of competency achieved in each skill at quarterly intervals.

Maximum number of apprentices

9. No employer shall employ more apprentices than skilled workers without the approval of the Authority.

Tuition and examination fees

10. (1) The tuition fee for attendance at an approved vocational or technical training institution in terms of section 7 shall be paid on behalf of the apprentice concerned from the Fund.

(2) The examination fee in respect of any examination the apprentice is required to take in terms of section 7 shall be paid from the Fund.

(3) If an apprentice—

(a) attending an approved vocational or technical training institution—

(i) does not obtain a satisfactory report from the principal of the institution; or

(ii) has an unsatisfactory record of attendance at the institution; or

(iii) is withdrawn from the institution by the Authority; or

(iv) fails to pass the required examinations;

for any reason shall have his or her contract of apprenticeship rescinded by the Authority;

(b) the Authority may, in addition to rescinding his or her contract of apprenticeship, order that the tuition fee or any examination fee or both, as the case may be, be repaid by the apprentice in whole or in part to the Fund:

Provided that where the Authority is satisfied that the rescission of the contract of apprenticeship is attributable to circumstances which are beyond the apprentice's control, and which have not arisen as a result of any fault on the part of the apprentice or, if the apprentice is a minor, on the part of his guardian, the Authority shall not require the apprentice to repay any fee to the Fund.

Wages

11. (1) Subject to the provisions of this section the minimum hourly rates of wages which shall be paid to an apprentice during his or her apprenticeship shall be those percentages specified in the Fourth Schedule of the minimum hourly rates of wages payable to skilled worker under any industrial agreement.

(2) For the purpose of reckoning the hourly wage-rate of an apprentice, his or her monthly wage-rate shall be multiplied by twelve and divided by fifty-two.

(3) For the purpose of reckoning the hourly wage-rate of an apprentice, his or her weekly wage-rate shall be divided by the number of normal weekly hours which he or she is required to work in terms of section 15.

(4) For the purpose of reckoning the daily wage-rate of an apprentice, his or her hourly wage-rate shall be multiplied by the number of hours which he or she would normally work on the day in question in terms of section 15.

(5) During any period of full-time technical training or advanced technical training, and during any period of paid leave or paid sick-leave, the wages shall be at the rates provided for in subsection (1).

Additional remuneration

12. (1) For passing an examination, an apprentice shall be granted an increase as follows—

(a) an increase of four cents per hour for obtaining a pass or higher level in the National Certificate, or an equivalent approved examination;

(b) the increase referred to in subsection (1) shall be payable backdated from the day after the final day of the examination concerned, and shall continue for the remainder of the period of apprenticeship of the apprentice concerned.

(2) The increases referred to in this section shall be payable as from the last day upon which the apprentice sat for the relevant examination, and payments shall be made on and from the first regular pay-day following the employer being notified of the examination success.

Deductions from wages

13. An employer may deduct from the wages of an apprentice amounts in respect of pension schemes, sick pay funds or any other like matter operated under the protection of the appropriate Employment Council or his or her employer and any other amount mutually agreed by the apprentice and his or her employer:

Provided that any deductions made in terms of this paragraph shall not exceed ten *per centum* of the gross wages of the apprentice, as repayment for the cost of supplying tools to the apprentice.

Payment of wages

14. (1) An employer shall pay the wages due to an apprentice in his or her employ not later than four days following the last working day upon which such wages become due and payable.

(2) When an apprentice is indentured to the Authority and when a contract of apprenticeship is assigned to the Authority, the wages of such apprentice, including the wages payable during public holidays or during leave accrued in terms of section 16, shall be paid from the Fund:

Provided that the Fund shall discharge all the responsibilities of the Authority as employer in relation to leave accrued to an apprentice during periods of employment by the Authority when the contract of such apprentice is transferred to another employer.

(3) In respect of any period of apprenticeship other than that provided for in subsection (2) of this section the employer shall be responsible for the payment of an apprentice's normal wages, including the wages payable during public holidays or during leave accrued in terms of section 16, whenever such accrued leave is actually taken.

(4) The wages payable to an apprentice in respect of any period of paid leave taken by the apprentice shall be the normal wages which would have been payable for the same period had the apprentice not been on leave.

Medical-aid scheme

15. (1) Every apprentice shall participate in a medical aid scheme.

(2) Where the rules of a medical aid scheme require an employee to contribute towards such scheme, an apprentice shall not, for the duration of his apprenticeship, be required to pay more than fifty *per centum* of such contribution, the balance being paid by the employer.

Hours of work and overtime

16. (1) When an apprentice is required to attend an approved technical training-institution in terms of sections 6, 7 and 8, he or she shall be present at such institution on the days and during the hours specified by the principal of the institution concerned.

(2) The normal hours of work of an apprentice shall be the number of hours worked by a skilled worker class one in the same trade in the establishment in which he or she is employed.

(3) Time spent by an apprentice attending approved examinations during normal working hours shall be deemed to be time worked.

(4) An apprentice may be required to work paid overtime during apprenticeship:

Provided that no overtime shall be worked in excess of ten hours in any one week.

(5) Where an apprentice is required to work for a total of sixteen hours or more during a period of twenty-four hours, the employer shall neither require nor permit the apprentice to resume work within a period of twelve hours from the termination of the said working period.

(6) Apprentices shall be paid for overtime at rates in accordance with the procedure pertaining to a skilled worker class one in the same trade in the same establishment.

(7) Subject to the provisions of subsection (4), an apprentice requested by his or her employer to work outside his or her normal working hours shall not, without good and sufficient reason, refuse a reasonable request to do so:

Provided that an employer shall give an apprentice not less than one hour's notice of the requirement to work overtime.

(8) If, during any one week, an apprentice is available and is able and willing to work and his or her employer fails to provide him or her with work to do, the employer shall pay the apprentice the rate of wage prescribed for the number of hours normally worked.

(9) An employer shall neither require nor permit an apprentice to work periods when the apprentice is required to attend technical education training.

Leave

17. (1) In this section—

"working day" means a day on which an apprentice is normally expected to work.

(2) Subject to the provision of this section, apprentices shall be granted the paid public holidays, annual leave and sick leave—

(a) which are prescribed in an industrial agreement or in conditions of service; and

(b) which would normally be granted to skilled worker class one employed in the same trade and in the same establishment; on terms and conditions prescribed in such industrial agreement or conditions of service.

(3) An apprentice shall be granted one paid maternity leave during apprenticeship training. During that period training will be suspended.

(4) Where all or any of the matters described in subsection (2) are not prescribed in an industrial agreement or in conditions of service applicable to skilled worker employed in the same trade and in the same establishment as an apprentice, such apprentice shall be granted paid holidays, annual leave and sick leave on the following conditions—

(a) an apprentice shall be granted paid leave on all public holidays;

(b) an apprentice shall be granted thirty days paid leave during each year of apprenticeship;

(c) with the consent of his or her employer, an apprentice may accumulate his or her leave to a maximum of sixty days;

(d) leave shall be taken with the approval of the employer;

(e) an apprentice shall be granted thirty days sick-leave on full pay and a further thirty days sick-leave on half pay during each year of apprenticeship:

Provided that—

(i) any absence of more than three consecutive days in duration shall be supported by a medical certificate;

(ii) such leave shall not be accumulative;

(iii) the reason for such leave shall not be occasioned by the apprentice's own fault or negligence.

(4) Notwithstanding any provisions contained in any industrial agreement or in the conditions of service applicable to skilled worker employed in the same trade in the same establishment, the annual leave of apprentices shall accrue during any period of service specified in the National Service Act [*Chapter 11*:*08*], other than Phase 1 service as defined in this Act.

Outside work

18. (1) The terms and conditions relating to work undertaken by an apprentice outside the normal place of employment shall be the same as the conditions contained in an industrial agreement or conditions of service relating to a skilled worker in the same occupation or trade in the same establishment:

Provided that any employer who requires an apprentice to work outside his or her normal place of work for a period in excess of seven days, shall inform the Authority of such requirement.

(2) Where no industrial agreement or conditions of service mentioned in subsection (1) is applicable, the following minimum conditions shall apply—

(a) where an apprentice is required to work away from the employer's establishment or usual working place, necessitating travelling, the apprentice shall be provided with the necessary transport and accommodation by the employer;

(b) where an apprentice is temporarily required by the employer to live away from his or her usual place of residence, board and lodging, including bed and meals whilst travelling, shall be paid by the employer;

(c) in computing travelling time, no account shall be taken of time spent on any work prior to the commencement of the journey or after arrival at the place or destination, and such work shall be paid for at the ordinary hourly rate;

(d) for each working hour spent by an apprentice in travelling, he or she shall be paid his or her current rate of normal pay;

(e) for each hour outside ordinary working time spent by an apprentice in travelling, he or she shall be paid his or her current rate of normal pay:

Provided that an apprentice shall not be paid more than nine hours' travelling pay at normal rates, whether for time within or outside of ordinary hours, in any period of twenty-four hours of continuous travelling time, calculated from the commencement of a journey.

(3) In the case of an apprentice who travels in terms of subsection (2) on a—

(a) Sunday, in the case of an apprentice working a six-day week;

(b) Saturday in the case of an apprentice working a five-day week; and

(c) all paid holidays:

shall be regarded as ordinary working days for the computation of travelling pay.

Personal protective equipment

19. An apprentice shall be supplied by the employer, free of charge, such personal protective equipment as is appropriate to the designated trade.

Practical trade test

20. (1) The Authority shall ensure that an apprentice is trade tested within six months before termination of contract.

(2) If the apprentice fails the test or has not been trade tested for whatsoever reasons that contract shall be extended for a period not more than one year with the same employer.

(3) Where an extension is granted a training programme must be provided within two weeks of such extension.

(4) An apprentice shall be assessed and informed of any short comings at least three months before trade retest by way of a written report which shall be signed by employer, apprentice and the Authority.

(5) The employer shall address the weaknesses before the retest.

(6) A contract shall only be cancelled for failure of a trade test upon exhaustion of the requirements specified in this section.

Fees

21. Application fees, administrative fees, registration fees and any other fees shall be as specified in the Second Schedule.

Compliance with regulations

22. Where an employer violates any of the stated provisions of this Statutory Instrument, the Authority may direct the employer to be prohibited from contracting apprentices.

FIRST SCHEDULE (*Section 4*)

DESIGNATION OF TRADES

Plastics Artisan

SECOND SCHEDULE (*Sections 6*(*6*) *and 21*)

Fees

Nature of Fee	**Category**	**Approved Fees US$ (Payable in ZWL$)**
Registration Fees Theory Paper	NFC and Class 4	8
	NC and Class 3	12
	ND and Class 2	15
	HND and Class 1	18
Registration Fees Practical Paper	NFC	12
	NC	15
	ND	18
	HND	20
	Class 4	20
	Class 3	30

Nature of Fee	Category	Approved Fees US$ (Payable in ZWL$)
	Class 2	40
	Class 1	50
Registration fees Project	NFC	—
	NC	18
	ND	20
	HND	25
Registration fees on the Job Training	NC	15
	ND	18
	HND	20
Administration fees	NFC and Class 4	10
	NC and Class 3	25
	ND and Class 2	25
	HND and Class 1	25
Centre fee	NFC and Class 4	10
	NC and Class 3	20
	ND and Class 2	20
	HND and Class 1	20
Re-mark of HEXCO Examinations		
(a) Theory per subject	NFC and Class 4	50
	NC and Class 3	50
	ND and Class 2	60
	HND and Class 1	60
Practical or project per subject	NFC	75

Nature of Fee	Category	Approved Fees US$ (Payable in ZWL$)
	NC	100
	ND	130
	HND	160
(b) Processing and sundries per script/practical/project		65
Sales and Services		
Registration of Contract		5
Clearance letter		5
Statutory test		25
Duplicate Contract of apprenticeship (Replacement)		25
Duplicate Contract of Apprenticeship (Regions)		25
Competency test for remission of Time/Trade Test		50
Terminal Re-test on Failed Components		50
Training Logbook		2
Re-registration of Contract of Apprenticeship		25
Changing names on certificates		120
Interview fees for special Scheme		5
Issue of Statement of Results		10
Urgent Statement of Results		20
Transcript		40
Urgent transcript		80
Qualification Confirmation		40
Urgent Qualification Confirmation		80
Search Fee (Non Refundable) for none-current records		5

Course Regulations (per course)		10
Omnibus course document		50
Proficiency Schedule		10
Standard		10
College Inspectorate		
Registration of College (to cover initial license)		500
Renewal of annual license (annual renewal)		500
Regularisation of College (for unregistered College)		750
Follow up inspection (after initial visit)		250
Additional Course (per course) registration		100
Qualification Assessment/ Exemption and Accreditations		
Exemption per course		75
Exemption per subject		20
Qualification Assessment (local)		50
Qualification Assessment (foreign)		75
Accreditation of college course		1 000

Note: The fees set out in this Schedule may be in Zimbabwean dollars at the official market rate.

THIRD SCHEDULE (*Section 8*)

PRACTICAL TRAINING SCHEDULES

PLASTICS ARTISAN

By the end of the training period, apprentices should be able to demonstrate knowledge and skills of:

1.0 Safety
1.1 Personal Protective Equipment
1.2 Housekeeping
1.3 Safe handling of chemicals
1.4 Basic first aid
1.5 Machine protective mechanisms
1.6 Fire-fighting procedures, classes of fire and appropriate fire extinguishers
1.7 Reporting injuries, diseases and dangerous incidences
1.8 Handling of hazardous substances and chemicals
1.9 Hazard Identification and Risk Assessment
2.0 Regulations
2.1 Health and Safety at Work Act
2.2 Factories and Works Act
2.3 Site Safety Rules and Regulations
2.4 Accident Prevention and Compensation Act
2.4 Food and Drug Administration Act
3.0 Tools and equipment
3.1 Measuring instruments and test equipment
    3.1.1 Safe handling and storage of measuring instruments and test equipment
3.2 Hand tools
    3.2.1 Safe handling and storage of hand tools
3.3 Power tools and equipment
    3.3.1 Safe handling and storage of power tools and equipment
4.0 Machine setting
4.1 Job card system
4.2 Resource requisition and allocation system
4.3 Equipment start up and shut down procedures
4.4 Tool changeover procedures
4.5 Machine parameter setting procedures
5.0 Machine operation
5.1 In-process machine adjustments procedures
5.2 In-process product conformity testing procedures
5.3 Product identification and recording procedures
5.4 Product labelling and packaging system
5.5 Trouble shooting and root cause analysis
5.6 Machine breakdown management
6.0 Materials handling

6.1 Raw materials safety data sheet
6.2 Raw materials management
6.2.1 Material requisition
6.2.2 Receiving materials
6.2.3 Storage
6.2.4 Off-loading methods
6.2.5 Material verification
6.2.6 Inventory
6.3 Work in progress and finished product management
6.4 Waste management
7.0 Quality control
7.1 Product and material specifications
7.2 Sampling techniques
7.3 Product and raw materials quality tests
7.4 Quality test methods
7.5 Data analysis
7.6 Quality control mechanisms
7.7 Product support
7.8 Product development
8.0 Machine and tools maintenance
8.1 Tooling and equipment documentation
8.2 Maintenance schedules
8.2.1 Planned/Preventive maintenance
8.2.1 Unscheduled/Corrective maintenance
8.3 Basic maintenance of tools and equipment
9.0 Basic engineering drawing
9.1 Drawings
9.2 Sketching simple working drawings
9.3 Layout plan
9.4 Scaling
10.0 Basic mechanical engineering
10.1 Machine components and functionality
10.2 Basic hydraulic and pneumatic systems
10.3 Basic fabrication techniques
11.0 Basic refrigeration and air conditioning
11.1 Fluid flow
11.2 Refrigeration cycle
11.3 Basic cooling and heating systems
11.4 Troubleshooting techniques

11.5 Cooling and heating systems maintenance
12.0 Basic computer systems
12.1 Operating systems
12.2 Software applications
13.0 Supervisory management
13.1 Planning
13.2 Leading/ Motivation
13.3 Organising
13.4 Controlling
13.5 Decision making

FOURTH SCHEDULE (*Section 11*)

MINIMUM RATES OF WAGES FOR APPRENTICES

Percentage of the monthly minimum wage for Skilled Worker Class One wage rate as stipulated in the Collective Bargaining Agreement: Chemical Industry

Year of training	*Per centum*
First	30
Second	45
Third	60
Fourth	87